

26VECV01919 26VECV01919

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-06

Motion: DEFENDANT FORD MOTOR COMPANY'S DEMURRER TO PLAINTIFFS' COMPLAINT

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Case Number: 26VECV01919 Hearing Date: August 6, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

OSCAR ARMANDO

RIVERA BARRERA, an individual, and LILIAN RIVERA DE RIVERA, an individual,

Plaintiff,

vs.

FORD MOTOR COMPANY, a Delaware Corporation,

and DOES 1 through 10,

inclusive,

Defendants.

CASE NO: 26VECV01919

[TENTATIVE]

ORDER RE:

DEFENDANT

FORD MOTOR COMPANY'S DEMURRER TO

PLAINTIFFS'
COMPLAINT

Dept. W

8:30 a.m.

August 6, 2026

For the reasons stated below, the Court SUSTAINS
Defendant's demurrer to Plaintiffs' Complaint without leave to amend.

Background

This is a lemon law case. Plaintiffs Oscar and Lilian Rivera allege that on September 4, 2023, they purchased a new Ford F-150 manufactured by Defendant Ford Motor Company for \$81,323.76. Plaintiffs allege that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On April 1, 2026, Plaintiffs filed suit against Defendant, alleging three violations of the Song-Beverly Act. Plaintiffs are represented by the firm Quill and Arrow. However, this is not the first time Plaintiffs filed suit for this vehicle. Two years ago, on June 3, 2024, Plaintiffs filed suit against Defendant Ford Motor Company, alleging multiple violations of the Song-Beverly Act, based on the purchase of this same vehicle. This suit (Case No. 24VECV02584) currently sits in the Van Nuys Dept. A. Plaintiffs are represented in that case by Strategic Legal Practices.

Now, Defendant demurs
to Plaintiff's Complaint.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the

demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Defendant provides the declaration of Sydney Sloas, who outlines an extensive meet and confer effort between her and Plaintiffs' counsel. Ms. Sloas requested that Plaintiffs' counsel either drop this duplicative case or dismiss the original action. (Sloas Decl. ¶¶ 3-7.) Plaintiffs' counsel was initially communicative and stated that they planned to contact Plaintiffs' original counsel to get the case dismissed. (Id. ¶ 5.) Defendant was then granted a 30-day extension for filing a responsive pleading to allow Plaintiffs to resolve this issue. (Id. ¶ 7.) Defendant clearly communicated to Plaintiffs that they would be forced to file a demurrer if neither suit was dismissed. (Id. ¶ 6.) Plaintiffs have yet to dismiss either of these claims. (Id. ¶ 8.) Thus, even though Defendant did not meet and confer in person or by call, the Court finds that Defendant has met their meet and confer obligations.

Discussion

Defendant demurs to Plaintiffs' entire Complaint, arguing that Plaintiffs already have a pending action against Defendant for identical Song-Beverly claims for the same vehicle.

Under CCP § 430.10, "[t]he party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: . . . There is another action pending between the same parties on the same cause of action." (CCP § 430.10(c).)

Here, Defendant plainly shows that Plaintiffs have a pending action as to all three of these Song-Beverly claims on this same vehicle. On June 6, 2024, Plaintiffs filed suit against Defendant, alleging three violations of the Song-Beverly Act as brought in this case, as well as claims for breach of implied warranty, negligent repair, and fraudulent concealment. (See, Sloas Decl. Ex. 3.) The case at hand also alleges the same three violations of the Song-Beverly Act. (See generally, Compl.) Both cases involve the same vehicle – a 2023 Ford F-150, VIN # 1FTFW1E50PFB59417. (Sloas Decl. Ex. 3, ¶ 7; see also, Compl. ¶ 8.) Thus, there is a duplicative pending action.

In opposition, Plaintiffs do not dispute that this duplicative pending

action exists. (Opp. p. 2:6-13.) Instead, Plaintiffs state that, "Plaintiffs unequivocally elected to have Quill & Arrow continue representing them in this action" and that dismissal of this claim would force Plaintiffs, "to continue litigating through counsel unequivocally discharged or risk losing their claims entirely." (Id. p. 2:6-7; Id. p. 2:19-20.) Plaintiffs further argue that dismissal would deprive them of their right to dismiss and choose their own counsel. (Id. p. 2:14-17.)

As Defendant points out in their Reply, that is incorrect. (Reply, p. 1:13-21.) Plaintiffs still maintain their right to be represented by whichever counsel they choose. If Plaintiffs wish to be represented by Quill and Arrow, rather than Strategic Legal Practices, Plaintiffs should substitute their new counsel into the original 2024 case. Nothing this Court does here today will prevent Plaintiffs from doing this. Thus, Plaintiffs' preference of counsel is irrelevant to the issue at hand, and the dismissal of this second duplicative suit will do nothing to prevent Plaintiffs from being represented by whomever they prefer.

Ultimately, it is uncontested that Plaintiffs filed a suit two years ago that fully encompasses the three claims alleged in this case. Thus, a demurrer under CCP § 430.10(c) is appropriate. Additionally, there are no grounds to grant leave to amend, as the issue with this Complaint is the existence of the duplicative action from 2024. For these reasons, the Court SUSTAINS Defendant's demurrer to Plaintiffs' Complaint without leave to amend.

Conclusion

The Court SUSTAINS Defendant's demurrer to Plaintiffs' Complaint without leave to amend.

IT

IS SO ORDERED. Defendant TO GIVE NOTICE.